

statement with an update on the arbitration at least seven calendar days in advance of the hearing.

If either Party challenges the tentative ruling on Line 14, a Further Case Management Conference will be held.

2. 9:00 AM CASE NUMBER: C24-02228
CASE NAME: ZAHRA SADAT HENDI VS. ZBIGNIEW KOSTRZEWSKI
ISSUE CONFERENCE WITH SETTLEMENT MENTOR
FILED BY:

TENTATIVE RULING:

Parties to appear for settlement conference.

3. 10:00 AM CASE NUMBER: C25-01983
CASE NAME: KURT VOSS VS. GREGORY GOMES
HEARING ON ORDER TO SHOW CAUSE IN RE: CONTEMPT OF PREVIOUS TRO AND PRELIMINARY INJUNCTION
FILED BY:

TENTATIVE RULING:

This matter is before the Court on an Order to Show Cause to Defendant Gregory Gomes regarding alleged violations of the Court's Temporary Restraining Order (dated July 17, 2025) and Preliminary Injunction (dated October 3, 2025). On November 20, 2025, this Court issued an Order Granting Plaintiffs' Ex Parte Application for Issuance of Order to Show Cause re: Contempt. That order set the hearing May 7, 2026 and specifically identified that a written response was due nine court days before the hearing and a reply five days before the hearing.

On February 26, 2026, the Court granted a Petition to Compel Arbitration. The Court received no documents relating to the Order to Show Cause until April 29, 2026, at which point Defendant filed a "Statement Regarding Ex Parte Hearing on Order to Show Cause re Contempt; Order Compelling A[r]bitration and Staying Action." In that filing, counsel for Defendant stated that he believed the instant hearing was vacated as a result of the arbitration order. He stated that, if the hearing is to continue, "justice and due process require that the [hearing] be continued fifteen (15) days to permit Defendant to file a substantive opposition." Defendant implicitly argues that the burden was on Plaintiff to show that the "ex parte proceeding is independent from the arbitration, or that the stay is otherwise inapplicable." That is not so. The Court set a contempt proceeding, and Defendant apparently failed to check the docket to verify the assumption that it would be vacated. As Plaintiff properly identifies, the issue the Court is addressing in this hearing is conduct outside of the arbitration. It is therefore properly within the Court's jurisdiction to address compliance. (*McCluskey v. Henry* (2020) 56 Cal.App.5th 1197, 1206, quoting *LaPrade v. Kidder Peabody & Co.* (D.C. Cir. 1998) 330 U.S. App.D.C. 386 ("The procedural predicate for the trial court's award of section 128.7 sanctions was not conduct that occurred in the arbitration proceeding. . . . Therefore, the trial court's 'jurisdiction' to entertain defendants' motion for sanctions, like its jurisdiction to entertain McCluskey's amended motion to lift the stay, 'derived from the original ... suit, which was only stayed

(*not dismissed*) pending the results of the arbitration.”).) Courts generally have jurisdiction to enforce their own orders and this case is no different.

Defendant gives no justification for why “justice and due process” require additional time, especially as Defendant apparently was capable of realizing this matter *was* still on calendar in advance of the hearing, but chose to ignore the Court’s deadline and file a belated brief statement.

The only evidence before this Court is that Gomes violated this Court’s orders. The Court will therefore impose sanctions in the amount of \$1,000 pursuant to Code of Civil Procedure section 1218. Plaintiffs may make further request for reasonable attorneys’ fees related to this contempt proceeding by motion.

Law & Motion

4. 9:00 AM CASE NUMBER: C22-02652
CASE NAME: HONAKER VS. CHP OFFICER DONNIE THOMAS
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: CHP OFFICER DONNIE THOMAS
TENTATIVE RULING:

Defendants State of California acting by and through the California Highway Patrol (“State”) and Officer Donnie Thomas (“Officer Thomas”) move for summary judgment or, in the alternative, adjudication. The motion for summary judgment is **granted**, as discussed below. Defendants shall prepare an appropriate form of judgment, separate from any order on this motion, and circulate for approval as to form.

I. Background

On December 13, 2021, plaintiff’s vehicle was rear ended by Renee Thomas, the spouse of Officer Thomas. Ms. Thomas called her husband, but told plaintiff she had summoned the police. Officer Thomas arrived on scene and collected plaintiff’s identification and insurance information, asking plaintiff questions about the incident, but refusing to make a report. He gave plaintiff a false name when she requested his name and badge number. Through a confusing series of phone calls to the Brentwood Police Department and Officer Thomas (through CHP dispatch), a police officer eventually arrived on scene and took an accident report. Officer Thomas told plaintiff he could not because it was a “conflict of interest.” Plaintiff made a civilian complaint against Officer Thomas on December 14, 2021 based on her contention that she feared for her safety during the interaction with Officer Thomas.

On December 13, 2022, plaintiff filed the present action against both Officer Thomas and the State, wherein she seeks recovery for (1) Unreasonable Seizure; (2) Unreasonable Search; (3) False Imprisonment; and (4) Intentional Infliction of Emotional Distress. (A demurrer was sustained to the fifth “negligence” cause of action.) (Second Amended Complaint, filed on 10/19/23; see also Minute Order dated 3/28/24.)

Just less than two years after the collision, on December 8, 2023, plaintiff filed a complaint for damages against Ms. Thomas and Officer Thomas for personal injury and property damage arising from the motor vehicle accident. Approximately one year ago, on April 17, 2025, plaintiff settled that